



United States Department of the Interior

INTERIOR BUSINESS CENTER

Washington, DC 20240

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY AUTHORITY: FAR 16.505(b)(2)

Solicitation #:140D0425Q0110

Title: Business Process and Information Management Support Services (BPIMSS)

1. Identification of the agency and the contracting activity, and specific identification of the document as a “Justification for an Exception to Fair Opportunity.”

This document is a Justification for an Exception to Fair Opportunity executed by the Department of the Interior (DOI), Interior Business Center (IBC), Acquisition Services Directorate (AQD), Division I Branch III, on behalf of the Department of Health and Human Services (HHS), National Institutes of Health (NIH), National Institute of Allergy and Infectious Diseases (NIAID).

2. Nature and/or description of the action being approved.

The purpose of this document is to outline the rationale for issuing a task order on a sole source basis to Booz Allen Hamilton, Inc. against the National Institutes of Health Information Technology Acquisition and Assessments Center Chief Information Officer-Solutions and Partners 3 (NITAAC/CIO-SP3) contract during a period of stay while the protest is ongoing of the follow-on competitive award. The NIAID Enabling and Advancing Technology (NEAT) Blanket Purchase Agreement (BPA) (BPA Nos. 140D0424A0016, 140D0424A0022, 140D0424A0023, 140D0424A0024, 140D0424A0025, 140D0424A0026 and 140D0424A0027) were awarded on July 22, 2024 but a Court of Federal Claims (COFC) protest was issued on August 9, 2024. As a result of the protest a performance stay was issued making it impossible to begin the acquisition process for a follow-on order under the NIAID NEAT BPA. AQD therefore intends to issue a Time and Materials (T&M) task order to the incumbent contractor, Booz Allen Hamilton, Inc. As the incumbent, Booz Allen Hamilton, Inc. is intimately familiar with the support required and is uniquely qualified to support NIAID while the NIAID NEAT BPA COFC protest is ongoing.

3. A description of the supplies or services required to meet the agency’s needs (including the estimated value).

The contractor will be responsible for providing Business Process and Information Management Support Services (BPIMSS) to include evaluating, planning for, and implementing new technologies in the NIAID environment in response to changing business strategies, policy, and regulatory changes. The contractor will be required to

provide Information Technology (IT) services that help sustain and expand the use of current hardware and operating systems. Additionally, the support will provide continual process and services delivery improvements, and support the transition from current functional silos to work in cross-functional teams that are focused on integrated technology solutions spanning related lines of business.

The Period of Performance (PoP) will be from March 4, 2025 through September 4, 2025 and will consist of one six-month Base Period. The task order will include FAR 52.217-8 which will allow the potential for up to a six-month extension, if exercised.

The estimated value is approximately [REDACTED] over the six-month duration ([REDACTED] with the inclusion of FAR 52.217-8 if exercised for all 6 months).

- 4. Identification of the exception to fair opportunity (see 16.505(b)(2)) and the supporting rationale, including a demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the exception cited. If the contracting officer uses the logical follow-on exception, the rationale shall describe why the relationship between the initial order and the follow-on is logical (e.g., in terms of scope, period of performance, or value).**

FAR 16.505(b)(2)(i)(C) – The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

This task order will be issued to Booz Allen Hamilton, Inc. during a period of stay while the protest is ongoing of the follow-on competitive award. The new competitive award will not be in place prior to expiration of the previous task order and the work will need to continue until the new award is in place. As the incumbent, Booz Allen Hamilton, Inc. is intimately familiar with the support required and is uniquely qualified to support NIAID while the NIAID NEAT BPA COFC protest is ongoing. Booz Allen Hamilton, Inc. is currently performing the work until March 3, 2025 under task order 140D0419F0318. That task order was awarded by AQD, on a competitive basis, on behalf of the Department of Health and Human Services (HHS), National Institutes of Health (NIH), National Institute of Allergy and Infectious Diseases (NIAID), and Booz Allen Hamilton's performance under the task order has been satisfactory. Booz Allen Hamilton has the capability and expertise to continue to support this requirement with minimal interruption or schedule impact. Issuing a sole source contract to a different contractor for this bridge support is not in the Government's best interest as a new contractor would need time to familiarize themselves with the requirement. Booz Allen Hamilton can avoid the unacceptable delays that bringing in a new contractor would require and is the only vendor with the capability and experience needed to meet the Government requirements on this tight schedule.

Solicitation #140D0425Q0110

Obtaining competition for this bridge is impracticable under the circumstances described herein as it would require considerable lead time to identify sources, receive quotes, conduct a source selection, and process appropriate award documentation. Selecting any other source would also require a significant transition-in/ramp up period to get a new contractor up to speed on the complex services provided, including transfer of documentation, and obtaining access to controlled Government systems.

The award of this task order to Booz Allen Hamilton, Inc. is most advantageous and in the best interest of the Government in meeting critical NIAID mission requirements.

5. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer will determine that the anticipated cost to the Government is fair and reasonable based on a comparison of the proposed price from Booz Allen Hamilton, Inc. to the historical prices paid for the same services (including current contracting pricing). Furthermore, as part of the price analysis, the Contracting Officer will include a comparison of the proposed price to market pricing, in accordance with DOI-AAAP-0024, Enhancing Competition. This requirement is for commercial services and is exempt from cost analysis per FAR 15.403-1(b)(3). Other than certified cost or pricing data may be requested for further analysis if deemed necessary by the Contracting Officer.

6. Any other facts supporting the justification.

Sufficient capacity exists under the CIO-SP3 contract for this interim task order. NITAAC recently extended the period of performance on all its CIO-SP3 contracts through April 29, 2025 and indicated that any task order issued by this date can include a period of performance of up to five years.

In accordance with FAR 16.505(b)(2)(ii)(D), within 14 days after placing the order with Booz Allen Hamilton, Inc., a redacted version of this justification will be posted on SAM.gov for a minimum of 30 days.

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

AQD plans to utilize this sole source award to provide critical support to NIAID while the NIAID NEAT BPA COFC protest is ongoing.

The need for a subsequent sole source task order will be mitigated in the future through competition of orders under the multiple award BPAs discussed in Section 2 which were

Solicitation #140D0425Q0110

awarded in July 2024 and currently awaiting resolution of the protest which is not expected to be resolved until after March 2025. Once the protest is resolved, all future orders under these BPAs will be competed amongst all BPA holders. A need for this sole source task order was not anticipated as the original estimated award date of the BPAs, as well as first orders under the BPAs, were planned for Quarter Two of FY2024. However, due to the protest, award of the orders under the BPA will be delayed. AQD only anticipates utilizing this interim task order to provide critical support to NIAID until the protest is resolved for the new BPAs and the BPA call is competed and awarded allowing adequate time for a transition period.

8. The contacting officer's certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief.

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]
Contracting Officer

Date

9. Evidence that any supporting data that is the responsibility of technical or requirements personnel (e.g., verifying the Government's minimum needs or requirements or other rationale for an exception to fair opportunity) and which form a basis for the justification have been certified as complete and accurate by the technical or requirements personnel.

I certify that the technical data which forms a basis for this justification is complete and accurate and meets the Government's minimum needs.

[REDACTED]

[REDACTED]
Program Official

Date

10. A written determination by the approving official that one of the circumstances in FAR 16.505(b)(2)(i)(A) through (E) applies to the order.

FAR 16.505(b)(2)(i)(C) – The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

11. Reviews and Approvals

Concur

[Redacted Signature]

Date

Chief, Acquisition Management Branch 3, Division 1

Concur

[Redacted Signature]

Date

Chief, Acquisition Management, Division 1

Concur

[Redacted Signature]

Date

Bureau Competition Advocate
Chief, Acquisition Policy and Oversight Branch 1

Approve

[Redacted Signature]

Date

Head of the Contracting Activity